



Public Affairs

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Before the
United States Copyright Office, Library of Congress
Washington, D.C.

In the Matter of
Section 1201 Study: Docket No. 2015-8
Notice and Request for Public Comment

Reply Comments of AAA (American Automobile Association)

I. Introduction and Summary

With more than 56 million members, AAA (American Automobile Association) is a not-for-profit member services organization dedicated to improving the experiences of America's motorists. To that end, we have worked over many years with Federal and State agencies to promote driver-friendly policies such as highway infrastructure investment, road safety, and fuel efficiency. We look forward to continuing our efforts on behalf of motorists by working with the Copyright Office as it develops exemptions to Section 1201(a) of the Digital Millennium Copyright Act (DMCA) to permit motorists to repair or modify their vehicles.

AAA submits these reply comments in the above-captioned proceeding to urge the Librarian of Congress ("Librarian") to maintain long-standing consumer choices in car repair. AAA commends the Librarian's grant of a limited exemption for Class 21 to permit circumvention by the authorized owner of the vehicle to allow for diagnosis, repair, or lawful modification. However, AAA agrees with commenting parties, including the Auto Care Association, Electronic Frontier Foundation, and the Consumer Technology Association, who conclude that this exemption does not go far enough to mitigate the adverse effects of the circumvention prohibition in Section 1201(a). The Librarian can and should extend the exemption beyond vehicle owners themselves, to third-parties who perform work at the request of the vehicle owners. AAA also urges the Librarian to focus only on its expertise, copyright issues, in the triennial review, and to adopt a rebuttable presumption in favor of previously granted exemptions.

II. Consumers Should be Able to Have Choices in Car Repair

Consumers have historically had and should continue to have choices with respect to how their vehicles are repaired—either performing the work themselves or with the assistance of the mechanic of their choosing.

For over a century, many American motorists have repaired and modified their cars and trucks themselves. They do so to save money, to repair a problem, to adjust a vehicle to better meet their driving needs, or simply because they enjoy working on one of their most prized (and expensive) possessions. This sort of do-it-yourself repair and personalization is a critical element of the American car culture.¹ Countless magazines and TV shows are devoted to helping backyard mechanics hone their skills and share their enthusiasm for this hobby with fellow motorists.

The explosion of sophisticated technology in modern cars has increased safety, efficiency, performance, and environmental standards, but has also dramatically increased the difficulty of working on one's own car. To the extent that they do not have the inclination or capability to repair their vehicles themselves, consumers want the ability to choose their preferred mechanic and do not want to be limited to manufacturer-affiliated dealers. "Studies confirm that consumers prefer to obtain parts and service from independent businesses rather than dealerships – benefitting from . . . higher consumer satisfaction from local repair shops and neighborhood mechanics."² "Motorists faced with no alternative but to have their vehicles serviced at a dealership may be limited in their ability to get competitive prices, convenient locations, or the option of getting a second opinion."³ In particular, because replacement parts and services from independent manufacturers and repair shops are less expensive than those supplied by original equipment manufacturers ("OEMs") and dealers, "competition from these independents constrains supracompetitive pricing by OEMs."⁴ Independent repair shops have become even more important as the growth in software-controlled systems and functions has made it more difficult for consumers to repair their vehicles themselves. These shops "have the equipment, knowledge, and experience necessary to address the consumer's problem accurately and in compliance with laws and regulations pertinent to motor vehicles."⁵ Accordingly, independent repair shops provide a much-needed and cost-effective choice for consumers.

III. The Prohibition in Section 1201(a) Interferes with These Long-Standing Consumer Choices (Question 7)

As the computer technology in vehicles has become increasingly sophisticated, the prohibition on circumvention in Section 1201(a) of the DMCA has impeded consumers' choices with respect to the repair and modification of their vehicles.

Modern vehicles are equipped with software and computers that monitor and control a variety of vehicle functions, known as electronic control units ("ECUs"). "As modern vehicles have become more reliant on software to operate, a wide variety of diagnostic, repair and modification activities now require access to and sometimes alteration of those computer programs, including identifying malfunctions,

¹ AAA Class 21 Supp. Reply Comments, at 1.

² Comments of Auto Care Association, at 4 (citing "Independent vs. dealer shops for car repair," *Consumer Reports*, Jan. 22, 2015 (available at <http://www.consumerreports.org/cro/magazine/2015/03/best-places-to-get-your-car-repaired/index.htm>)).

³ "AAA to Congress: Support Right to Repair Act," *Auto Service Professional*, May 18, 2011 (available at <http://www.autoserviceprofessional.com/article/91579/aaa-to-congress-support-right-to-repair-act>). "Right to Repair" refers to the concept that a consumer, or a person designated by the consumer, should have access to information that the consumer's own vehicle generates in order to assist in the repair, maintenance or enjoyment of the vehicle.

⁴ Comments of Auto Care Association, at 4; see also "Is the Dealer Better Than An Independent Mechanic?," *The Wall Street Journal*, May 17, 2010 (available at <http://blogs.wsj.com/drivers-seat/2010/05/17/is-the-dealer-better-than-an-independent-mechanic/>) (discussing study showing that consumers can save an average of about \$300 a year, or 25% of their repair bills, by going to an independent repair shop), "Where to Repair? Dealer or Independent," *CarTalk*, last visited March 30, 2016 (available at <http://www.cartalk.com/content/where-repair-dealer-or-independent>) (discussing study showing that dealers charged 15% more than independent repair shops for the same repairs).

⁵ Comments of Auto Care Association, at 4-5.

installing replacement parts, and customizing vehicles for specialized uses.”⁶ However, the use by vehicle manufacturers of technological protection measures (“TPMs”) that restrict access to these computer programs impedes consumers’ ability to repair or modify their vehicles. The Register rightfully concluded that “TPMs have a substantial adverse impact on the ability of vehicle owners to engage in diagnosis, repair or modification of their vehicles”⁷ and therefore, the Librarian adopted an exemption that permits circumvention for the purposes of the diagnosis, repair or lawful modification of a vehicle function, but only to the extent undertaken by the authorized owner of the vehicle.⁸

This exemption, while salutary, does not go far enough in mitigating the adverse impact of TPMs because in many instances vehicle owners do not have the knowledge, expertise, or expensive equipment to circumvent TPMs themselves and thus must use a repair shop.⁹ AAA agrees with the Auto Care Association that “[w]ithout means for the individual to circumvent or to effectuate modifications and repairs, the consumer benefits derived from the exemption could be severely limited, and the purposes of Section 1201(a) will have been defeated.”¹⁰ Under the existing exemption, vehicle owners who cannot personally access their vehicles’ electronic functions are limited to using factory-authorized dealers for diagnosis, repair, and modification. This harms consumers because dealers generally charge more than independent shops for service, and because it limits the universe of service providers in a geographic area, reducing competition on both price and quality of service. It also forces consumers with long-standing relationships with independent repair shops to abandon those relationships. Therefore, this exemption should be extended to third parties who act on vehicle owners’ behalf, in particular, independent service providers.

AAA agrees with the Electronic Frontier Foundation (“EFF”) that the Class 21 exemption can and should be extended to non-infringing activities requiring circumvention undertaken by an approved third party on behalf of a vehicle owner.¹¹ Although the Register was “sympathetic to the practical issues that may arise if vehicle owners do not have the knowledge or ability to circumvent TPMs themselves,” the Register declined to recommend an exemption for circumvention by third-parties on vehicle owners’ behalves because it “*may* implicate the anti-trafficking provisions set forth in section 1201(a)(2) and (b).”¹² The anti-trafficking rules set forth in sections 1201(a) and (b) generally prohibit the manufacturer and provision of technologies, products, or services—or “part[s] thereof”—that are “primarily” designed for purposes of circumvention or have “only limited commercially significant purpose or use other than to circumvent.”¹³ However, as EFF notes, circumvention by third parties on behalf of a vehicle owner for purposes of diagnosis, repair, or modification does not *necessarily* violate the anti-trafficking provisions.¹⁴

For example, a comprehensive auto repair service may incidentally require circumvention of access controls on vehicle software in order to access diagnostic data or adjust settings. Such a service would not be “primarily designed or produced for the purpose of

⁶ *Section 1201 Rulemaking: Sixth Triennial Proceeding to Determine Exemptions to the Prohibition on Circumvention, Recommendation of the Register of Copyrights* (Oct. 8, 2015) (“2015 Recommendation of the Register”), at 218.

⁷ *Id.* at 239.

⁸ *Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, Final Rule*, 80 Fed. Reg. 65944, 65954-55 (Oct. 28, 2015).

⁹ See Comments of Electronic Frontier Foundation (“EFF”), at 10 (noting that “access to software embedded in a vehicle for purposes of diagnosis and repair is beyond the ability of most vehicle owners but can be done with the assistance of an independent mechanic”).

¹⁰ Comments of Auto Care Association, at 10.

¹¹ Comments of EFF, at 10-11.

¹² 2015 Recommendation of the Register, at 246 (emphasis added).

¹³ 17 U.S.C. § 1201(a)(2), (b).

¹⁴ Comments of EFF, at 10.

circumventing a technological measure,” as the primary purpose of the service is the repair, not the circumvention. Likewise, such a service would have a “commercially significant purpose” other than circumvention and would not likely be “marketed . . . for use in circumvention.”¹⁵

AAA agrees with EFF that nothing in Section 1201(a)(1) requires the Librarian to deny an exemption because it could be used to violate other sections of the statute. In fact, the statute itself suggests just the opposite because section 1201(a)(1)(E) states that exemptions established in rulemakings conducted pursuant to section 1201(a)(1)(C) may not be “used as a defense in any action to enforce any provision of this title other than [section 1201(a)(1)].”¹⁶ Thus, this provision presupposes that an occasion to raise such a defense might arise. AAA agrees with EFF’s analysis of the statutory text: “If the Librarian were forbidden to grant exemptions for which some uses might constitute trafficking, then section 1201(a)(1)(E) . . . would be superfluous.”¹⁷ Therefore, a careful reading of the statutory language leads to the conclusion that the Librarian can extend the Class 21 exemption under the existing to include circumvention undertaken by third parties on behalf of the authorized vehicle owner to allow the diagnosis, repair, or lawful modification of a vehicle function.

IV. The Section 1201 Rulemaking Process Should Focus Only on Copyright Issues (Question 2)

AAA agrees with the Auto Care Association, EFF, and Consumer Technology Association (“CTA”) that the triennial review process under Section 1201(a) should not incorporate interests that are outside of core copyright concerns.¹⁸

First, the Librarian has been assigned by Congress the job of implementing the DMCA because of its expert in copyright law; the Librarian is not expert in, and does not have expert staff to analyze, claims concerning the impact of an exemption on air pollution, fuel economy standards, vehicle safety, or any other non-Copyright Act issues. Congress has assigned authority over those realms to different expert agencies. The Register itself has acknowledged that these “significant public policy issues fall[] within the expertise and authority of other government agencies”¹⁹ and that “many of the issues that were raised in [the 2015 triennial review] *would be more properly debated by Congress or the agencies with primary jurisdiction in the relevant areas.*”²⁰ That conclusion is unmistakably right, and the Librarian should embrace the full import of its meaning. Congress could not have intended to assign those issues to the Librarian when expert agencies such as the Environmental Protection Agency, the National Highway Traffic Safety Administration, and state regulators already have jurisdiction over those areas. The CTA and Auto Care Association rightfully point out that Section 1201(a) assigns only to the Department of Commerce the job of advising the Register.²¹

Second, AAA agrees with the Auto Care Association that the DMCA requires the Librarian to consider factors only that are relevant to copyright law.²² Section 1201(a)(1)(C) enumerates the factors

¹⁵ *Id.* at 10-11 (citations omitted).

¹⁶ 17 U.S.C. § 1201(a)(1)(E); Comments of EFF, at 11.

¹⁷ Comments of EFF, at 11.

¹⁸ Comments of Auto Care Association, at 7-8; Comments of EFF, at 4-8; Comments of Consumer Technology Association (“CTA”), at 6-7.

¹⁹ 2015 Recommendation of the Register, at 242.

²⁰ *Id.* at 2 (emphasis added).

²¹ Comments of CTA, at 7; Comments of Auto Care Association, at 7; 17 U.S.C. § 1201(a)(1)(C); *see also* 2015 Recommendation of the Register, at 9 (noting that “Congress directed the Register, in turn, to consult with the Assistant Secretary for Communications and Information of the Department of Commerce, who oversees NTIA, in the course of formulating her recommendation”).

²² Comments of Auto Care Association, at 7-8.

that the Librarian “shall examine” in conducting the rulemaking to determine whether users of a copyrighted work are, or are likely to be, adversely affected by the anti-circumvention prohibition in their ability to make noninfringing uses of a particular class of copyrighted works under the Copyright Act. As the Auto Care Association points out, clauses 1201(a)(1)(C)(i)–(iv) “are tethered to the purposes of the Copyright Act”—the availability for use of copyrighted works; the availability of copyrighted works for socially beneficial purposes; and the effect of circumvention on the market for or value of the copyrighted works.²³ Although Section 1201(a)(1)(C)(iv) dictates that the Librarian shall examine “such other factors as the Librarian considers appropriate,” the interpretive principle of *ejusdem generis*—that “[w]here general words follow specific words in a statutory enumeration, the general words are construed to embrace only objects similar in nature to those objects enumerated by the preceding specific words”²⁴—means that those other factors must be of the same nature as the copyright interests enumerated in the previous factors. Accordingly, the factors in the statute must be “understood and applied within the scope of the powers of the Copyright Office and the Librarian under the copyright laws.”²⁵

Finally, considering non-copyright interests such as air pollution, fuel economy standards, and vehicle safety in the Section 1201 process is not necessary to further those interests. AAA is committed to making progress on these important issues. AAA believes, however, that they are already adequately addressed by the agencies with the expertise and oversight of such issues. Most importantly, an exemption under Section 1201 does *not* afford the recipient license to violate any other applicable law or regulation, *e.g.*, safety or fuel economy standards. That is true under the existing exemption for an owner’s circumvention, and that would be true if the repair work was done at the direction of the car owner by an independent repair shop. Thus, it would be illegal for a car owner to use the Class 21 exemption to modify her car’s ECU such that the car violated emissions standards. AAA agrees with the Auto Care Association that “[t]hose laws apply regardless of the Librarian determination and without any delay or grace period under an exemption.”²⁶ Further, the Librarian has reinforced this principle by conditioning the Class 21 exemption on compliance with all applicable law. Thus, a person who circumvents a TPM in a manner that violates another law, whether the vehicle owner or a third-party repair shop, both will be liable for that violation and cannot avail herself of the exemption. AAA believes that this regime adequately accounts for these non-copyright interests.

The Alliance of Automobile Manufacturers argues that other regulatory agencies “should not only be asked their views on how granting the proposed exemption would impact their regulatory efforts, but also to provide suggestions on how any such exemption might be crafted or modified to minimize adverse impacts.”²⁷ This is unnecessary because any behavior that seeks to take advantage of an exemption is already subject to and constrained by laws and regulations in those non-copyright law areas, and it is contrary to Congress’s intent because these factors lie beyond the core copyright concerns it has instructed the Librarian to consider.

²³ *Id.* at 7; 17 U.S.C. § 1201(a)(1)(C)(i)–(iv).

²⁴ *Wash. State Dep’t of Soc. & Health Servs. v. Guardianship Estate of Keffeler*, 537 U.S. 371, 384 (2003) (citation omitted).

²⁵ Comments of Auto Care Association, at 8.

²⁶ *Id.*

²⁷ Comments of Alliance of Automobile Manufacturers, at 5.

V. The Section 1201 Rulemaking Process Should Incorporate A Rebuttable Presumption In Favor Of Renewal (Question 3)

AAA agrees with the Register, Auto Care Association, EFF, and CTA that exemptions granted in a prior triennial review should enjoy a presumption of renewal in subsequent rulemakings.²⁸ However, this presumption should be rebuttable by a showing that circumstances have changed during the previous three-year period in a way that justifies a reevaluation of the exemption.

The Register has acknowledged that “the rulemaking procedure, as enacted by Congress, is resource-intensive for both participants and the Office.”²⁹ In addition, a number of the petitions submitted during the most recent triennial review “essentially sought renewal of existing exemptions” and were unopposed.³⁰ A presumption in favor of existing exemptions would be more administratively efficient and would streamline the rulemaking process because commenters and the Librarian would not have to rehash issues that have already been considered and decided.

The presumption should, however, be rebuttable by a showing of materially changed circumstances. A rebuttable presumption takes advantage of the Librarian’s previous consideration of the exemption, but also allows the rulemaking process to continue to account for changing circumstances over time and different marketplace realities, addressing the Alliance of Automobile Manufacturers’ concern that “[m]ost of the markets relevant to proposed exemptions are dynamic and fast-changing.”³¹ A rebuttable presumption in favor of renewal would still allow an opponent to the exemption to raise “[i]ssues such as whether technological changes or market developments have created new alternatives to circumvention that did not exist three years previously, or have made circumvention less (or more) necessary to carry out specified non-infringing uses.”³²

VI. Conclusion

AAA thanks the Copyright Office for conducting this study and appreciates the opportunity to provide its views. For the foregoing reasons, AAA submits that (1) the Librarian should extend the Class 21 exemption to permit third-party assistance to vehicle owners and has the ability to do so under the statute as currently drafted (question 7); (2) the rulemaking process conducted pursuant to section 1201 should not accommodate interests that are outside of core copyright concerns (question 2); and (3) section 1201 should be adjusted so that exemptions granted in a prior triennial review should enjoy a rebuttable presumption of renewal in subsequent rulemakings (question 3).

Respectfully submitted,



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²⁸ 2015 Recommendation of the Register, at 4 (citing *The Register’s Perspective on Copyright Review Hearing* at 27 (statement of Maria A. Pallante, Register of Copyrights and Dir., USCO)); Comments of Auto Care Association, at 8-9; Comments of EFF, at 8-9; Comments of CTA, at 7.

²⁹ Library of Congress, *Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies*, Dkt. No. 2014-07, Notice of Inquiry, 249 Fed. Reg. 55687, 81371 (Dec. 29, 2015).

³⁰ *Id.*

³¹ Comments of Alliance of Automobile Manufacturers, at 6.

³² *Id.*